

including screenshots of relevant portions of the online onboarding system. Defendants have carried their burden to demonstrate an agreement to arbitrate the controversy exists.

If the moving party meets its initial prima facie burden and the opposing party disputes the agreement, then in the second step, the opposing party bears the burden of producing evidence to challenge the authenticity of the agreement. (*See Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th at p. 219.) Here, no opposition has been filed and thus there is no challenge to the authenticity of the agreement. The moving party has met its burden and the Court is required to compel arbitration if the agreement is enforceable.

Once the Court “determines the agreement to arbitrate exists, it should then decide the other objections to its enforceability. The court must grant the petition “unless it determines that: (a) The right to compel arbitration has been waived by the petitioner; or (b) Grounds exist for the revocation of the agreement.” (§ 1281.2.)” *Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th at p. 219. Plaintiff bears the burden of showing unconscionability by a preponderance of the evidence. *Peng v. First Republic Bank* (2013) 219 Cal.App.4th 1462, 1468. Plaintiff has not opposed the Motion, and no unconscionability has been alleged. There is no evidence before the Court that Defendants have waived their right to compel arbitration, or that any other grounds exist for revocation of the agreement. The DRA will be enforced.

The Motion to Compel Arbitration is **GRANTED**. This matter is stayed pending the outcome of arbitration. No proposed order has been lodged as required by Local Rule 5.17(D). Defendant shall prepare the order. This matter is set for a review hearing regarding status of arbitration on **Monday, May 5, 2025, at 9:00 a.m. in Department 64**. The parties are ordered to provide a status report to the Court no later than five court days prior to the review hearing.

#### **IN RE: GOODWIN**

**Case Number: 24CV-0204974**

**Tentative Ruling on Petition for Change of Name:** Petitioner Linda Jeanette Goodwin seeks to change her name to Linda Jeanette Lovely-Goodwin. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated, and the file closed upon the processing of the Decree Changing Name.

#### **MORIN VS. ROSS STORES, INC., ET AL.**

**Case Number: 24CV-0205453**

**Tentative Ruling on Motion to Compel Arbitration:** This is a wage and hour action. Plaintiff Sabrina Morin worked at Ross Dress for Less, in Redding. She was hired on or about July 1, 2023. Defendants Ross Stores, Inc. and Ross Dress for Less, Inc. seek to compel arbitration per the terms of a Dispute Resolution Agreement (“DRA”) Plaintiff signed electronically as part of her onboarding process. No opposition has been filed.

Existence of Agreement. CCP § 1281.2 requires the Court to grant a petition to compel arbitration where it determines that an agreement to arbitrate the controversy exists. The court makes this determination in a summary process. (See § 1290.2.) “[T]he trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court's discretion, to reach a final determination.” (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.) The burden of persuasion is always on the moving party to prove the existence of an arbitration agreement with the opposing party by a preponderance of